THE STATE

Versus

LIZWE SIBANDA

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 3 & 6 MARCH 2026

Criminal trial

Assessors:

S. Pedzisayi, for the state
V. Kucherera, for the accused

NDUNA J: On the 14th of October 2024, the accused is alleged to have unlawfully and intentionally caused the death of Vusimuzi Sibanda where it is alleged that the accused person beat the deceased three times with a log in the head thereby causing the said Vusimuzi Sibanda's death. The accused duly advised by counsel pleaded not guilty to the offence.

The State alleges that the accused went to the tent where the deceased was sleeping at night and assaulted him three times on the head. It is further alleged that the accused was in the company of a State witness, Bekikhosi Gumbo. Bekikhosi Gumbo testified for the State and maintained that the accused struck the deceased on the head with a log, which was produced in evidence as Exhibit 4.

The second State witness, Nigel Tshuma, also testified that the accused arrived and assaulted the deceased. He further stated that the accused assaulted him as well before he managed to escape and run away. He only learnt the following morning that the deceased had sustained injuries which resulted in his death.

In his defence, the accused admitted that he attacked the deceased but stated that he struck him on the trunk and not the head. He alleged that the first State witness was the one who struck the deceased with the log and was responsible for the fatal injuries. He further stated that the attack arose from a dispute while they were playing cards, and that he intervened only to save the first witness from further attacks by the deceased.

The version given by the accused differs materially from that of the State witnesses. The State witnesses indicated that the reason for the assault was unknown. It was never put to them during cross-examination that the assault arose from a dispute over money during gambling. The accused allowed the witnesses to testify without confronting them with his version. His cross-examination focused on their narrative despite being aware that his account of the events was entirely different. Consequently, the version now advanced by the accused was never suggested to the State witnesses.

It is acceptable in evaluating the evidence in totality to consider the inherent probabilities and the following *S v Chabalala 2003 (1) SACR 134 (SCA) at para [15]* is apposite:

> "The correct approach is to weigh up all the elements which point towards the guilt of the accused against all those which are indicative of his innocence, taking proper account of inherent strengths and weaknesses, probabilities and improbabilities on both sides and, having done so, to decide whether the balance weighs so heavily in favour of the State as to exclude any reasonable doubt about the accused's guilt."

An accused's version cannot be rejected merely because it is improbable. It can only be rejected on the basis of the inherent probabilities if it can be said to be so improbable that it cannot reasonably possibly be true. See *S v Shackell 2001 (2) SACR 185 (SCA) at para [30]* which I quote:

> "It is a trite principle that in criminal proceedings the prosecution must prove its case beyond reasonable doubt and that a mere preponderance of probabilities is not enough. Equally trite is the observation that, in view of this standard of proof in a criminal case, a court does not have to be convinced that every detail of an accused's version is true. If the accused's version is reasonably possibly true in substance the court must decide the matter on the acceptance of that version. Of course it is permissible to test the accused's version against the inherent probabilities. But it cannot be rejected merely because it is improbable; it can only be rejected on the basis of inherent probabilities if it can be said to be so improbable that it cannot reasonably possibly be true."

The accused in this case did not put his case to the state witnesses for the court to hear their comments to it. That could have helped the court in evaluating the defence now being raised in the defence case. It is regarded as very important to put the defence case to the state witnesses so as the court to be in a position to evaluate the worthiness

of what is being said both in the defence case and the state case. The court was faced with this scenario in *S v P 1974 1 SA 581 (RA) at 582 E – G* and it concluded as follows:

> "It would be difficult to over-emphasise the importance of putting the defence case to prosecution witnesses and it is certainly not a reason for not doing so that the answer will almost certainly be a denial. The Court was entitled to see and hear the reaction of the witnesses to the vitally important allegation that the appellant was not even in possession of red sandals on the two occasions he was alleged to have worn them at the river. Quite apart from the necessity to put this specific allegation there was, in my opinion, a duty to put the general allegation that there had been a conspiracy to fabricate evidence".

The two State witnesses gave their evidence in a clear and consistent manner and were not shaken under cross-examination. Their testimonies corroborated each other in several material respects. The court therefore finds these witnesses credible and accepts their evidence. It would be improper to reject evidence given openly in court where there is such consistency between the witnesses.

The accused admitted that he assaulted the deceased. However, the medical examination revealed that the deceased sustained injuries only to the head. No injuries were observed on the part of the body where the accused alleges he directed his blows, namely the belly. This indicates that the accused's version is false. The evidence establishes that the assaults were directed to the head of the deceased.

The defence advanced by the accused amounts to a fabrication, as submitted by the State. The accused withheld his version during the testimony of the State witnesses and only disclosed it when giving his own evidence. This conduct suggests a deliberate attempt to present a version that would remain unchallenged. The defence is therefore rejected in its entirety.

The court finds that the death of the deceased resulted from the assaults committed by the accused. The accused is accordingly found guilty of the murder of the deceased.

Sentence

The accused has been convicted after a trial. He assaulted and killed the deceased for no apparent reason. The conduct of the accused is extremely deplorable.

Up and until the end of the trial we could not get the reason for the assault. That makes the offence a very serious one.

In cases of murder where there is no much mitigation in accused's favour, the sentence must reflect that. The state has moved the court to grant the accused with the same sentence as was provided by the accused's defence. It for the court to decide whether or not the sentence so requested would meet the justice of the case.

In all these circumstances there is no question of a sentence other than a custodial sentence for this offence. Murder is the most serious crime in the book because it involves the taking away of human life, and the Court's first duty is to safeguard the sanctity of life. Therefore the most appropriate sentence is a term of a custodial sentence in this case. The question which holds the court is for how long can be appropriate sentence. The accused was drunk on the day in question. That must have contributed to the violence leading to the death of the deceased.

The *SI 146 of 2023* provides a sentence of 20 years for the offence. We have found that there is nothing in this case which can cause us to depart from the sentence as provided in the regulations. We accordingly sentence the accused to 20 years imprisonment. The articles used and in connection with the murder are forfeited for destruction.

National Prosecuting Authority, state's legal practitioners
Wallace Law Chambers, accused's legal practitioners